

amendable. *Vide* 14 Hen. 4. 10, 11. (l) 27 Hen. 6. 6 b. 11 Hen. 6. 14. 34 Hen. 6. 26. 28 Hen. 6. 11. and upon this reason it has been often adjudged since this statute of (a) 8 Hen. 6. that false Latin † in an original writ shall not be amended, because it wants legal form, and is to be imputed to the ignorance of the clerk, 9 Hen. 7. 16 b. as (b) *hos breve*, for *hoc breve*: and the common law is curious in observing the form of the register, and therefore it is adjudged in 6 Edw. 3. 36 b. 37 a. that where a trespass done by divers is joint or several, at the will of the plaintiff, yet in an action against John, Guardian of the Hospital of B. and brother Rob. L. and brother Rich. F. inasmuch as this default of the clerk for want of form, that these brethren are not named Confrerers, as it ought to be by the form of the register, the writ shall abate against all, although the guardian be well named. But in trespass against two, misnomer of one of the defendants shall not abate the whole writ, but it shall stand against the other who is well named; for there Herle took the difference, when the writ abates by the plea of the one for want of form, although the others have pleaded to issue, the writ shall abate against all; † but although one may abate the writ for matter in fact, as by reason of the misprision of his name, nevertheless the writ shall stand against the others. *Vide* 2 H. 7. 16. 11 H. 7. 5. 6. 21 H. 7. 31. 7 E. 4. 10. 5 E. 4. 2. 11 Ass. 15. 12 Ass. p. 14. 27 Ass. p. 45. 9 Hen. 6. 36. 12 E. 3. Brief 670. 12 E. 3. Brief 481. 27 H. 8. 26. 5 Plow. Com. in Assise of Fresh Force.

But as to the second manner of misprision in negligent writing of a word which is not a Latin word, that is amendable, as (c) *imaginavit*, for *imaginatus est*, it shall be amended, as it is adjudged in 11 Hen. 6. 3. 17. So was it adjudged in 3 Edw. 6. as Bendloes, Serjeant, reports, that where in a writ of *aiel* the writ was *axe*, (d) for *aria*, it was amended (D).

[160 a] As to the third manner of misprision in negligent omission or addition of a thing which it appears he himself ought to have added, or omitted of course; as by the omission of *Dei Gratia* in the King's stile, it shall be amended. 22 Hen. 6. 8. So 3 Ed. 6. as Bendloes, Serjeant, reports, these words in a *partitione faciend'* (e) (*ostensur quare non feceret*) were left out, and it was amended. *Vide* 35 H. 6. 6. 10 a. 2 Hen. 7. 11 b. 9 Hen. 7. 19. for addition of that which is apparent ought to be omitted. But the (f) omission or addition of any thing which alters the form of the writ is not amendable, as the addition or omission of (g) *delinet*, as appears in 11 H. 6. 14 a. b. or the addition of *debet*, as appears in 22 E. 4. 21 b. 22 a.

As to the fourth manner of misprision, *sc.* of the record or specialty, &c. *Vide* 21 H. 6. 8. 22 H. 6. 43. 37 H. 6. 34. 19 H. 6. Amendment 47. 8 E. 4. 4.

As to the fifth manner of misprision, in negligence of a clerk or officer, not in writing, &c. but in negligent keeping of the records, or in voluntary defacing of them, whereby the record becomes imperfect or erroneous, in Trin. 24 Eliz. the case was that Henry Fitz-Allen, late Earl of (a) Arundel, in the reign of Queen Mary suffered a common recovery of divers manors, and of lands and tenements in the county of Sussex; and the original writ upon the recovery was had, being greater and broader than the other writs of the same file, by the negligence of the officer by continual handling of it, a great part of this writ, which was more spacious than the rest, was

(l) Fitz. Amend. 35. Br. Amend. 6. Br. Brief. 519. *Postea* 161 b.

(a) 8 H. 6. c. 12.

† 1 Lev. 2, &c. *ib.*

(b) Br. Faux Latin 78. 2 Vent. 173. 2 Sand. 39. Hob. 66.

† Com. Dig. Abate. N. 6 Co. 64 b.

(c) 2 Vent. 173. Fitz. Amend. 24. Br. Amendment 81.

(d) 5 Co. 45 b. Moor 5. 1 And. 24. N. Benl. 33. pl. 53. 1 Lev. 2. seems *contra*, per Twisden and Windham, J.

(D) *Vid.* stat. 4 Geo. 2. cap. 26. that proceedings in Courts of Justice shall be in the English tongue.

(e) 5 Co. 45 b. Moor 5. 1 And. 24. Dal. 5. pl. 9. N. Benl. 33. pl. 53.

(f) Cr. El. 119.

(g) 5 Co. 35 b.

(a) 1 And. 79, 80.

obliterate, and worn out, so that but one letter of many of the names of divers of the said manors could be perceived, but the names of the manors were truly recited as well in the count (which always briefly recites the writ) as in the *habere facias seisinam*: and whether this original was amendable, or not, was a great question between P. Howard Earl of Arundel, cousin and heir of the said Henry Earl of Arundel, and the Lord Lumley, to whom the said Henry Earl of Arundel had conveyed divers of the said manors, &c. And to resolve this question, Sir Christopher Wray, Chief Justice of England, Sir Edward Anderson, Chief Justice of the Common Pleas, Sir Roger Manwood, Chief Baron of the Exchequer, and all the justices of England, assembled themselves together. And it was resolved by them all *una voce*, that the original writ should be amended according to the other parts of the record, *scil.* the count, and the *habere facias seisinam*; and that this misprision and negligence of the clerk in keeping of the original writ should be amended by this statute of 8 Hen. 6. for here doth not appear any want of knowledge in the clerk, but misprision and negligence in keeping of the writ, which is a misprision within the letter [160 b] and meaning of the Act; and *eo potius* in this case, because it was in a common recovery suffered by assent of the parties for assurance of lands. And although it is enacted, that if any record, or parcel thereof, writ, return, pannel, process, or warrant of attorney in the King's Courts, &c. are voluntarily (*b*) stolen, carried away, withdrawn, or avoided by any clerk, that it shall be felony; that doth not prove, that if the original writ or other part of the record be voluntarily stolen, &c. that it cannot be supplied and amended by the other parts of the record: for it was resolved that in both cases, as well where the record becomes imperfect and erroneous by voluntary offence of the clerk, as by his careless negligence, that it should be amended, for all is within this general word, misprision of the clerk. But if such part of the record which is so stolen, &c. or which appears not, cannot be supplied by the other parts of the record, nor by any exemplification made of the record, then it cannot be amended; and *vide* the first clause of this Act of 8 Hen. 6. gives remedy amongst others, where any subtraction or diminution is of any record, process, warrant of attorney, original writ, &c. And according to this resolution a fine was amended of Mich. 8 Jac. as appears by the order and rule of Court following.

Crompton.

Mich. 8 Jacobi Regis.

Lincoln, ss. *In fine levat' in Cur' hic in Octab' Sancti Hilarii, anno regni dom' Eliz. nuper Regine Anglie 16 inter Robertum Tyrwhite militem et al' quer' et Edmund Dighton, armiger' et al' defor' de maneris de Magna Sturton, Parva Sturton, et al' in com' preed' ; quia constat Cur' super visum pedis ejusdem finis, quod per humiditatem aeris, et pluviam super illam descenden' idem pes fines adeo oblitteratus est, ut multe linee ejusdem totalit' deletæ ita ut legi non possunt: tamen per breve de conventionione, et dedimus potestatem de cognitione inde capiend' ac per concordiam et notam ejusdem finis satis liquet et apparet que fuerunt verba in eodem pede prius script'. Ideo ordinat' est, quod preed' pes finis cum proclam' super inde indorsat' per chirographar' de novo rescribatur, ita quod concord' cum preed' brevi de convent', dedimus potestatem, concordia, et nota ejusd' finis, et cum aliis proclam' indorsat' super pedes finium ejusd' term' et quod preed' pes finis sic oblitterat' a filac' inde abstrahatur, et preed' pes finis sic de novo rescript' in loco ejusdem affiletur.*

And this briefly shall suffice for amendment of the misprision of the clerk in an original writ (E). And as to the case at Bar, the [161 a] rule of the Court was in these words: Crompton. *Ordinatum est per Cur' hic super auditu consilii utriusque partis et examinatione Clerici Cursistar' London et attornat' quer' super sacramenta sua in Cur' hic, quod hæc additio (generoso) nomini defend' in priori parte brevis original' de debito 100 li inde return' et affilat' in Banco hic mense Michaelis anno regni Regis nunc septimo, et omnes*

(b) Palm. 199. 11 Co. 34 b. 3 Inst. 70, 71, 72, 73. Standf. Pl. Cor. 36 b. Dalt. Just. 386. 6 Mod. 280.

(E) "The true rule is that original writs may be amended by 8 H. 6. c. 12. where it is only the misprision of the clerk: but a mistake occasioned by the nescience or ignorance of the clerk is not amendable by that statute." Per Willes, C.J. *Wynne v. Thomas*, Willes 568.